

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

MSRF, INC., *Complainant*

v.

HMM CO. LTD, *Respondent*.

DOCKET NO. 22-20

Served: June 12, 2023

ORDER OF: Linda S. CROVELLA, *Administrative Law Judge*.

ORDER ON RESPONDENT’S MOTION TO STRIKE OR FOR LEAVE TO REPLY

On June 3, 2023, Respondent HMM Co. Ltd. (“HMM”) filed a Motion to Strike Portions of Complainant MSRF, Inc.’s (“MSRF”) Reply Brief or, in the Alternative, For Leave to Supplement the Record with a Reply (“Motion to Strike or Leave to File Reply”).

HMM seeks through its Motion to Strike or Leave to File Reply for the undersigned to strike “Sections II and III from the Argument Section in the MSRF Reply because the arguments contained therein were not properly raised in the MSRF Initial Brief and do not respond to arguments made by HMM in its Opposition Brief.” Motion to Strike or Leave to File Reply at 4-5.¹ In the alternative, HMM asserts that it should be allowed to file a surreply brief. *Id.* at 5. HMM contends that MSRF “raises new and novel arguments in conjunction with facts that were not properly raised in the MSRF Initial Brief under 46 C.F.R. §502.214(c)....” Motion to Strike or Leave to File Reply at 3.

On June 9, 2023, MSRF filed an opposition to HMM’s motion, asserting that it raises no new arguments in its reply brief, “instead, it seeks to explain and clarify the legal and factual arguments” it raised in its initial brief. Opposition to Motion to Strike or Leave to File Reply at 2. MSRF does not oppose the filing of a surreply by HMM.

For the reasons stated below, HMM’s Motion to Strike or Leave to File Reply is **GRANTED IN PART AND DENIED IN PART**.

¹ Respondent did not number the pages in its motion, as required in the Initial Order under “Additional Instructions,” paragraph 3: “All filings and all attachments must have page numbers, or they may be rejected.” While the motion will not be rejected, Respondent is reminded to review and abide by the orders issued in this proceeding.

For this particular case, the most efficient way to resolve this proceeding while ensuring that the decision is based on the merits is to allow the surreply. Moreover, there is no opposition to the surreply. However, other parties should not assume that surreply briefs will be permitted.

HMM's request for 15-days from the date of this order to file a surreply is excessive. HMM filed the motion *sub judice* ten days after receipt of MSRF's Reply Brief. No time has been allotted in the schedule for a surreply, and HMM appears to have laid out at least some of its argument in the motion. Respondent will be allowed 10-days after receipt of this Order to file a surreply.

Accordingly,

IT IS ORDERED that Respondent HMM's motion to strike portions of Complainant MSRF's Reply Brief be **DENIED**, with prejudice,

IT IS FURTHER ORDERED that Respondent HMM's motion for leave to file a surreply brief be **GRANTED**,

IT IS FURTHER ORDERED that Respondent HMM's surreply brief is due by June 22, 2023.



Linda S. Harris Crovella
Administrative Law Judge